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THE EU RIGHT OF COMMUNICATION TO THE PUBLIC – STILL LOOKING FOR A GOOD LINK

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Abstract

The EU right of communication to the public continues to be a controversial topic. Despite the benefit of over 20 decisions since 2006, certainty and predictability continue to be elusive. Understanding the EU communication to the public right has been equivalent to finding a good quality stream on a hyperlink aggregator like ‘firstrowsports’. At the best of times, you get a dodgy link to illegitimate content. As such, this chapter sets out to outline the current test used to determine infringement of the communication to the public right; discuss the context in which communication to the public decisions are decided; highlight the main problems with the right and argue why the Court of Justice of the European Union (CJEU) is still getting it wrong; and finally, analyze how the four pending (at the time of writing) referrals focusing on the application of the communication to the public right are likely to be treated by the CJEU.

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Introduction

The development of the EU right of communication to the public has been ongoing since 2006. The right has gone through many evolutions with its application to different technologies, the addition of new criteria, and conflict.¹ Despite the benefit of several years, inclusive of over 20 decided cases, the Court of Justice of the European Union (CJEU) continues to struggle with the concept of ‘communication to the public’. The state of the law is as clear as the average stream obtained via a hyperlink that was aggregated by an injunctioned website like ‘firstrowsports’: dodgy. Consequently, this chapter will outline the current test used to determine infringement of the communication to the public right; discuss the context in which communication to the public decisions are decided; highlight the main problems with the right and argue why the CJEU is still getting it wrong; and finally, analyze how the four pending (at the time of writing) referrals focusing on the application of the communication to the public right are likely to be treated by the CJEU.

The current test

From Rafael Hoteles to STIM and SAMI – Background to the development of the communication to the public right

The test for establishing an infringement of the communication to the public right has been incrementally construed through the decisions of the CJEU. The development of the right was done in two main phases, which are easily demarcated as pre-*Svensson*² and post-*Svensson*. The core of the test for communication to the public was established in the first case to substantively address the right of communication to the public: *SGAE v Rafael Hoteles*.³

1 The conflict stems from the CJEU’s controversial choice, interpretation and application of key criteria used for determining ‘communication to the public’. Notably, the inclusion of the ‘new public’ criterion created the practical problem of exhaustion of the right, which necessitated the inclusion of the ‘knowledge’ criterion. In turn, the ‘knowledge’ criterion led to theoretical conflict with the strict liability nature of copyright law and moreover, the practical problem of conflation with secondary liability.

2 Case C-466/12 *Svensson and others v Retriever Sverige AB* [2014] ECLI:EU:C:2014:76.

3 Case C-306/05 *Sociedad General de Autores y Editores de España (SGAE) v Rafael Hoteles SA* [2006] ECLI:EU:C:2006:764.

Here it was established that the act of ‘communication to the public’ involves three core criteria, a ‘communication’ made to a ‘public’ and, where the act is a retransmission or reception in public, there must be a ‘new public’. In addition to these criteria, *SGAE v Rafael Hoteles* also established key interpretive elements for the application of the right. The right should be interpreted and applied consistently across Member States,⁴ interpreted in line with international copyright treaties,⁵ and be construed broadly so as to establish a high level of protection for rightholders.⁶

Subsequent to *SGAE v Rafael Hoteles*, referrals involving different types of technologies and/or uses necessitated clarifications and additions to the initial test for communication to the public. The most important cases in this regard are *FAPL v QC Leisure*,⁷ *SCF v Marco del Corso*,⁸ *ITV v TVCatchup*,⁹ *Svensson*, *GS Media*,¹⁰ *Filmspeler*,¹¹ and *Ziggo*.¹² Consequently, this chapter focuses on these cases for the purpose of outlining what the current test for communication to the public is.¹³ *FAPL v QC Leisure* was the first case to expressly define ‘communication’ and moreover confirmed the scope of the concept of ‘communication’.¹⁴ Similarly, *SCF v Marco del Corso* articulated the current approach to ‘public’.¹⁵ In terms of additions to the core criteria laid down in *SGAE v Rafael Hoteles*, *ITV v TVCatchup* was the first case to make a substantive addition to the test. In *ITV v TVCatchup*, it was held that where a communication is made by a ‘different technical means’ to the original communication, there is no need to establish a ‘new public’.¹⁶

After the introduction of the ‘different technical means’ criterion, CJEU case law on communication to the public progressed into its second phase of development: post-*Svensson*. Two cases taken together, *Svensson* and *GS Media*, marked a notable turning point in the saga of the communication to the public right. The post-*Svensson* phase is of critical importance because it involved a shift away from analogue issues involving traditional forms of dissemination that were governed by the long-standing rules and logic of Article 11bis of the Berne Convention.¹⁷ Instead, attention turned to on demand technologies that invoked the making available aspect of the communication to the public right. Therefore, the obligations under Article 8 of the World Intellectual Property Organization (WIPO) Copyright Treaty 1996 came into focus.

The CJEU’s response to the difference in technological issues was arguably more controversial than the introduction of the ‘new public’ criterion in the initial test for communication

4 *Ibid.*, at [31].

5 *Ibid.*, at [35].

6 *Ibid.*, at [36].

7 Cases C-403/08 and C-429/08 *Football Association Premier League (FAPL) and others v QC Leisure and others and Karen Murphy v Media Protection Services Ltd* [2011] ECLI:EU:C:2011:631.

8 Case C-135/10 *Societa Consortile Fonografici (SCF) v Marco del Corso* [2012] ECLI:EU:C:2012:140.

9 Case C-607/11 *ITV Broadcasting Ltd and others v TVCatchup Ltd* [2013] ECLI:EU:C:2013:147.

10 Case C-160/15 *GS Media BV v Sanoma Media Netherlands BV and others* [2016] ECLI:EU:C:2016:644.

11 Case C-527/15 *Stichting Brein v Jack Frederik Willems (also trading under the name Filmspeler)* [2017] ECLI:EU:C:2017:300.

12 Case C-610/15 *Stichting Brein v Ziggo BV and XS4All Internet BV* [2017] ECLI:EU:C:2017:456.

13 For a more in-depth discussion of the development of the EU communication to the public right, see J Koo, *The Right of Communication to the Public in EU Copyright Law* (Hart Publishing 2019).

14 *FAPL v QC Leisure* [2012], at [193]–[194].

15 *SCF v Marco Del Corso* [2013], at [84]–[86].

16 *ITV v TVCatchup* [2013], at [26] and [39].

17 It should be noted that despite *ITV v TVCatchup* involving the near-simultaneous streaming of television broadcasts on the internet, the issue in that case should be categorized as a traditional act of retransmission. In other words, it did not involve the making available aspect given that the streams were not on demand.

to the public. In *Svensson*, the CJEU exacerbated the inherent problems with the ‘new public’ criterion by holding that hyperlinking to a freely available work on the internet was not an act of ‘communication to the public’ because there was no ‘new public’. This decision was reached after making the assumption that the act of hyperlinking amounted to a ‘communication’.¹⁸ However, because the work was already freely accessible to all users with an internet connection, the specific act of hyperlinking did not make the work available to an additional group of persons, who were not contemplated by the rightholder at the time of making the original communication (upload of the work).¹⁹ This aspect of the *Svensson* decision set the course for the controversy that arose in *GS Media*, which was unfortunately perpetuated in *Filmspeler* and *Ziggo*, and is awaiting further discussion in the pending referrals.

GS Media introduced the new ‘knowledge’ requirement for establishing an act of communication to the public.²⁰ This was the most significant development to the test for communication to the public since the introduction of the ‘new public’ criterion in *SGAE v Rafael Hoteles*.²¹ It can be argued that the ‘knowledge’ criterion was the direct response to the conundrum created in *Svensson* where the interpretation applied to the ‘new public’ criterion resulted in exhaustion of the communication to the public right, contrary to Article 3(3) of the InfoSoc Directive.²² Therefore, for an act of communication to the public to be actionable, the person making the ‘communication’ must have done so with ‘actual or presumed knowledge’. Moreover, it is necessary to state that the concept of ‘presumed knowledge’ includes a ‘for profit’ element whereby a communication involving a profit element creates a rebuttable presumption of ‘knowledge’.²³ On the contrary, where an act is not done ‘for profit’, the rebuttable presumption is that the person making the communication does not know and cannot reasonably know whether the work was published with consent.²⁴

In the aftermath of *GS Media*, the cases of *Filmspeler* and *Ziggo* further demonstrated the problems with the interpretation, scope, and application of the current test for communication to the public. In particular, these three cases illustrated the overbroad expansion of the right of communication to the public, the conflation of primary infringement with secondary liability, and the unrestricted judicial activism that facilitated the incoherent harmonization of EU copyright law through the backdoor. These issues now form the basis of Joined Cases C-682/18 and C-683/18. The Opinion of Advocate General (AG) Saugmandsgaard ØE directly addressed the extent to which operators of platforms are responsible for acts of ‘communication to the public’ and whether the right of communication to the public should be expanded to include acts where the operator has knowledge.²⁵

18 *Svensson* [2014] at [18].

19 *Ibid.*, at [22]–[28].

20 *GS Media* [2016], at [47]–[51].

21 Ginsburg argued that the new found reliance on ‘knowledge’ post-*GS Media* creates doubt about the relevance of the ‘new public’ criterion: J Ginsburg, ‘The Court of Justice of the European Union an EU Law of Liability for Facilitation of Copyright Infringement: Observations on *Brein v. Filmspeler* [C527/15] (2017) and *Brein v. Ziggo* [C-610/15] (2017)’ (2017) <https://papers.ssrn.com/sol3/papers.cfm?abstract_id=3024302> (last accessed 19 August 2020) 9.

22 Directive 2001/29/EC of the European Parliament and of the Council of 22 May 2001 on the harmonization of certain aspects of copyright and related rights in the information OJ L 167/10 and *Svensson* [2014] at [30].

23 *GS Media* [2016], at [51].

24 *Ibid.*, at [47].

25 Joined Cases C-682/18 and C-683/18 *Frank Peterson v Google LLC, YouTube LLC, YouTube Inc, Google Germany GmbH and Elsevier Inc v Cyando AG* [2020] Opinion of AG Saugmandsgaard ØE ECLI:EU:C:2020:586, at [63]–[131].

Elements of the test

(Step 1) ‘Communication’

Following *FAPL v QC Leisure*, the term ‘communication’ can be interpreted in terms of the transmission approach or the access approach. The transmission approach refers to ‘any transmission of the protected works, irrespective of the technical means or process used’.²⁶ This requires an actual provision of the work to the recipient and can be described as the traditional approach to ‘communication’, which developed in relation to analogue communication technologies like broadcasting and cable transmission. Alternatively, the access approach dictates a situation where the user ‘intervenes in full knowledge of the consequences of his action to give his customers access to a protected work’.²⁷ This approach is wider than the transmission approach because it does not require an actual provision of the work, but merely the allowance of the possibility to receive the work. In the pre-*Svensson* stage, there was uncertainty as to whether the transmission or access approach should be applied to the EU right of communication to the public. With the exception of a few cases, the access approach seemed to be preferred.²⁸ Post-*Svensson*, it seemingly became clear that the access approach was preferred for addressing situations involving the making available aspect. In other words, situations involving on demand technologies would require the access approach.²⁹ However, the recent Opinion of AG Saugmandsgaard ØE utilized the transmission approach in interpreting ‘communication’.³⁰

(Step 2) ‘Public’

The term ‘public’ is defined as a ‘fairly large and indeterminate number of persons’.³¹ The concept of ‘public’ as applied in the online context must account for the number of persons who may have access to the work, whether simultaneously or in succession. Where there is a substantial number of persons that can access a work, a ‘public’ will be established.³² It

26 *FAPL v QC Leisure* [2011], at [193].

27 *Ibid.*, at [194].

28 Of the twenty-five decided cases so far concerning communication to the public, only the following nine cases employed the transmission approach: *FAPL v QC Leisure* [2011], at [193]; Case C-283/10 *Circul Globus București (Circ & Variete Globus București) v Uniunea Compozitorilor și Muzicologilor din România – Asociația pentru Drepturi de Autor (UCMR – ADA)* [2011] ECLI:EU:C:2011:772, at [40]; *ITV v TVCatchup* [2013] at [23]; Case C-351/12 *Ochranný svaz autorský pro práva k dílům hudebním os (OSA) v Léčebné lázně Mariánské Lázně as* [2014] ECLI:EU:C:2014:110, at [25]; Case C-151/15 *Portugese Society of Authors CRL (SPA) v Ministerio Público and others* [2015] ECLI:EU:C:2015:468, at [11]; Case C-325/14 *SBS Belgium NV v Belgische Vereniging van Auteurs, Componisten en Uitgevers (SABAM)* [2016] ECLI:EU:C:2015:764, at [16]; Case C-117/15 *Reha Training Gesellschaft für Sport- und Unfallrehabilitation mbH v Gesellschaft für musikalische Aufführungs- und mechanische Vervielfältigungsrechte eV (GEMA)* [2016] ECLI:EU:C:2016:379, at [38]; Case C-265/16 *VCAST Ltd v RTI SpA* [2017] ECLI:EU:C:2017:913, at [42]; and Case C-263/18 *Nederlands Uitgeversverbond and Groep Algemene Uitgevers v Tom Kabinet Internet BV, Tom Kabinet Holding BV and Tom Kabinet Uitgeverij BV* [2019] ECLI:EU:C:2019:1111, at [62] (the same error was committed by AG Campos Sánchez-Bordona who also referred to the transmission approach in relation to the act of making available in Case C-161/17 *Land Nordrhein-Westfalen v Dirk Renckhoff* [2018] Opinion of AG Campos Sánchez-Bordona ECLI:EU:C:2018:279, at [60] and [62]).

29 *Svensson* [2014], at [19]; *GS Media* [2016], at [35]; *Filmspelers* [2017], at [31]; and *Ziggo* [2017], at [26].

30 *Peterson v Google* [2020] Opinion of AG Saugmandsgaard ØE, at [56]–[62].

31 *SCF v Marco del Corso* [2012], at [84].

32 *Tom Kabinet* [2019], at [68]–[69].

is particularly important to mention that the CJEU in *Tom Kabinet* focused on the fact that anyone could become a member of the reading club and that there were no technical measures to limit access to a book to one downloaded copy at a time.³³ Consequently, the interpretation of ‘public’ can be described as potential access to a work by a substantial number of persons.³⁴

(Step 3) ‘Different technical means’

‘Different technical means’ refers to a situation where the technological medium used to effect a (subsequent) ‘communication’ is changed from the initial communication. In *ITV v TVCatchup*, it was held that, where a subsequent communication is made by a different technical means to the original communication, that subsequent act requires separate authorization. Consequently, the ‘new public’ criterion does not apply to subsequent communications made by a different technical means to the original communication.³⁵

(Step 4) ‘New public’

‘New public’ is defined as an audience (public) different to the one at which the original act of communication was directed.³⁶ The ‘new public’ criterion is applicable where a subsequent act of communication occurs using the same technical means as the original communication. In such a case, it must be proved that the subsequent communication enlarged the number of potential recipients to include persons not originally contemplated by the right-holder when authorizing the initial communication. In other words, unauthorized access is provided to persons who but for the intervention of the communicator would not have been able to access the work.³⁷

(Step 5) ‘Knowledge’

In *GS Media* it was stated that, for there to be an actionable ‘communication to the public’, the person responsible for the act of ‘communication’ must have ‘knowledge’ that the communication of the work was unauthorized.³⁸ The ‘knowledge’ requirement is satisfied with actual or presumed knowledge that the work being communicated was unauthorized. Therefore, in the absence of actual or presumed knowledge, there can be no act of communication to the public. The CJEU achieved this end result by tying the concept of ‘knowledge’ to the definition of ‘communication’. That is, an intervention in full knowledge of the consequences of his action to give his customers access to a protected work. Therefore, in the absence of ‘knowledge’ the *right/required* kind of intervention is not made.³⁹

However, there is an open question as to whether the ‘knowledge’ requirement is restricted to situations involving subsequent communications that involve the making available aspect. This issue remains unanswered because the most recent case to involve a

33 *Ibid.*, at [69].

34 The concept of ‘public’ will be further explored in Case C-637/19 *BY v CX* (in progress).

35 *ITV v TVCatchup* [2013], at [26] and [39].

36 *SGAE v Rafael Hoteles* [2006], at [40].

37 *Ibid.*, at [42].

38 *GS Media* [2016], at [47]–[49].

39 *Ibid.*, at [48].

traditional act of communication, *Stim* and *SAMI*, did not discuss the new ‘knowledge’ criterion. This could be due to the fact that the CJEU held there was no infringement because there was no act of ‘communication’ in the first place.⁴⁰ As a result, a definitive answer will only be received via the next CJEU case to find infringement in relation to a traditional form of communication.

(Step 5 ½) ‘For profit’

The CJEU in introducing the ‘knowledge’ requirement also introduced a further criterion to assist the establishment of presumed knowledge. The ‘for profit’ concept was used in *GS Media* to create a rebuttable presumption that persons who communicate works ‘for profit’ ought to know whether the work was authorized. Thus, it is presumed that they have knowledge on the standing of the respective work.⁴¹ Contrastingly, where a work is not communicated ‘for profit’, there is a rebuttable presumption that the person responsible for the communication does not know and cannot reasonably know that the work had been published on the internet without the consent of the rightholder.⁴² However, the CJEU failed to define ‘for profit’ and, moreover, the CJEU assumed actual knowledge in the subsequent *Filmspelers* and *Ziggo* decisions.⁴³ Therefore, there is still uncertainty about what will be considered ‘for profit’. Moreover, the rebuttable presumption may give rise to a need for continuous monitoring, which may be impractical⁴⁴ and contrary to the no obligation to monitor requirement under Article 15 of the E-commerce Directive.⁴⁵

The test

In order to establish an actionable ‘communication to the public’, there must be an act of ‘communication’ made to a ‘public’. If the act of ‘communication’ is a subsequent communication, it must be made to a ‘new public’ unless the subsequent communication involves a ‘different technical means’ to the original communication. In addition to this, it must be proved that the person responsible for the act of communication has actual or presumed knowledge that the work being communicated is unauthorized.

Still getting it wrong

Having outlined the CJEU’s test for communication to the public, it is necessary to discuss the problems that it has created and the sources of those problems. With regard to the elements of the test, the ‘new public’ and ‘knowledge’ criteria and their consequent application have proven most troublesome and controversial. Notably, these criteria paved the way for exhaustion of the right, conflation of primary infringement and secondary liability, and

40 Case C-753/18 *Föreningen Svenska Tonsättares Internationella Musikbyrå upa (Stim) and Svenska Artisters och musikers, intresseorganisation ek för (SAMI) v Fleetmanager Sweden AB and Nordisj Biluthyrning AB* [2020] ECLI:EU:C:2020:268, at [33]–[36].

41 *GS Media* [2016], at [51].

42 *Ibid.*, at [47].

43 *Filmspelers* [2017], at [50] and *Ziggo* [2017], at [45].

44 M Leistner, ‘Closing the Book on the Hyperlinks: Brief Outline of the CJEU’s Case Law and Proposal for European Legislative Reform’ (2017) 39(6) *EIPR* 327, 331.

45 Directive 2000/31/EC of the European Parliament and of the Council of 8 June 2000 on certain legal aspects of information society services, in particular, electronic commerce, in the Internal Market [2000] OJ L 178/1.

general uncertainty. These issues form the Achilles heel of the communication to the public right. Therefore, the role and logic of the CJEU in developing the right of communication to the public must be examined. This is because the problems with the right have been created by the expansive approach of the CJEU in developing the law. With this in mind, focus is placed on the context in which the right of communication to the public has been developed, the practical implications of asking the wrong questions and choosing the wrong criteria and the reason why the problems persist.

Context

The development of the communication to the public right has been directly influenced by the recitals in the Preamble to the InfoSoc Directive and the judicial activism and specific interpretive approaches adopted by the CJEU. From the beginning, in *SGAE v Rafael Hoteles*, key considerations for the interpretation and application of the right were articulated. This included the notion of a high level of protection for rightholders and the broad interpretation of the right. In addition to this, reading the communication to the public case law of the CJEU reveals judicial activism and the ignoring of the dissemination role/function of copyright. Each of these contextual concerns will now be addressed in turn.

High level of protection and broad interpretation

Recitals 4 and 9 of the InfoSoc Directive state that ‘a high level of protection’ is crucial to intellectual creation. Recital 23 also states that the right of communication to the public ‘should be understood in a broad sense’. These recitals were paired together by the CJEU in *SGAE v Rafael Hoteles* to construct its maximalist protection approach to interpreting and applying the right.⁴⁶ Said approach is evidenced through all the CJEU’s communication to the public cases where the interpretation and application of the right was conducted in a manner to give protection to rightholders as broadly and as permissible under the law as possible. Notable determinations made by the CJEU, which demonstrate the maximalist protection approach, include the adoption of the access approach in lieu of the traditional transmission approach; assumptions made that contemporary technologies such as hyperlinks⁴⁷ and torrent files⁴⁸ involve acts of ‘communication’; and that intermediaries can be liable for the acts of their users.

The problem with this approach is that the scope of the right is now overbroad as it captures actions and actors which should not be caught in the net of ‘communication to the public’.⁴⁹ This is directly attributable to the interpretation of the recitals, which suggest that

46 *SGAE v Rafael Hoteles* [2006], at [36].

47 For discussion on hyperlinks, see E Arezzo, ‘Hyperlinks and Making Available Right in the European Union – What Future for the Internet after Svensson?’ (2014) *IIC* 524, 525–529 and G Frosio, ‘It’s All Linked: How Communication to the Public Affects Internet Architecture’ (2020) 37 *CSLR* 105 (last accessed 19 August 2020).

48 For discussion on torrents see: the expert report by Michael Walsh of Kerna Communication Ltd, quoted by Arnold J in *Dramatico Entertainment Ltd v British Sky Broadcasting Ltd* [2012] EWHC 268 (Ch), at [19] and *Roadshow Films Pty Ltd v iiNet Ltd* [2011] FCAFC 23, at [46]–[63].

49 The current scope of the communication to the public right covers acts that consist of the mere facilitation of access to content, to the more traditional act of enlarging public access: C Foong, ‘Volition and the “New Public”: A Convergence of US and EU Judicial Approaches to Communication to the Public’ (2020) 42(4) *EIPR* 230, 237.

there is a need for a high level of protection and in so doing, the scope of exclusive rights should be broadly interpreted. However, such an expansive view of the law ignores valuable competing considerations that ought to affect where the balance is struck for the law.⁵⁰ More specifically, the CJEU's interpretation and application of the communication to the public right demonstrates a bias toward rightholders at the expense of users, intermediaries, technology developers, and a fair balance of fundamental rights.⁵¹ If these competing interests are better accounted for, it is arguable that the scope of the right would be different. Having said that, the issue of the communication to the public right and the fundamental right of freedom of expression was explored in three fairly recent cases decided by the European Court of Human Rights (ECtHR) and the CJEU: *Maygar*,⁵² *Spiegel*,⁵³ and *Funke Medien*⁵⁴ (on the interplay between copyright and fundamental rights, see the general discussion in Chapter 2). What impact these cases have on future communication to the public right cases remains to be seen. It is hoped that the CJEU will adopt a more thorough balancing exercise in deciding the referrals that are currently pending.

Judicial activism

It was articulated in the previous sub-section that the CJEU has constructed a maximalist protection approach to the communication to the public right. This must be read in conjunction with the judicial activist approach adopted by the CJEU. It should be noted that the judicial activism demonstrated by the CJEU is not all negative. For example, articulating express definitions of 'public' and 'communication' are positive within reason. The judicial activism of the CJEU in relation to communication to the public should be commended to the extent that it has provided some clarity to key aspects of the right that lacked definition by virtue of the technological neutrality and vagueness of the wording of Article 3 and – by extension – Article 8 of the WIPO Copyright Treaty. Thus, the CJEU's judicial activism can be seen as proactive given that the burden of defining 'communication to the public' was thrust upon the CJEU by the legislature.⁵⁵ However, there are clear instances where the CJEU has overstepped its mandate and gone beyond the intention of the legislators who devised the InfoSoc Directive.

The CJEU's arbitrary inclusion of the 'new public', 'specific technical means', and 'knowledge' criteria have been controversial.⁵⁶ Furthermore, the ever-expanding interpretation of 'communication' remains a problem. These issues are at the center of the problems afflicting

50 The scope of the communication to the public right should be tailored to achieve the main goals of copyright. Furthermore, the criteria used should be consistent with those goals: C Sganga, *Propertizing European Copyright: History, Challenges and Opportunities* (Cheltenham: Edward Elgar Publishing 2018) 246 and 249–250; C Foong, *The Making Available Right: Realizing the Potential of Copyright's Dissemination Function in the Digital Age* (Cheltenham: Edward Elgar Publishing 2019) 7; and T Wu, 'Copyright's Communication Policy' (2004) 103(2) *Michigan Law Review* 278, 278.

51 Frosio argued that the expansion of the communication to the public right has profound repercussions for network design and business models: Frosio (2020) 33.

52 *Maygar Jeti ZRT v Hungary* App no 11257/16 (ECtHR, 4 December 2018).

53 Case C-516/17 *Spiegel Online GmbH v Volker Beck* [2019] ECLI:EU:C:2019:625.

54 Case C-469/17 *Funke Medien NRW GmbH v Bundesrepublik Deutschland* [2019] ECLI:EU:C:2019:623.

55 Foong argued that the drafting of vague and technology neutral laws that shift the burden on to courts to develop the law does not create clear guiding principles and – as such – cannot lead to predictability, consistency, or certainty in copyright decision-making: Foong (2019) 6 and 43–44.

56 See Koo (2019) Chapter 3.

the right of communication to the public.⁵⁷ It is arguable that the insertion of the ‘new public’ criterion has spawned most of the major problems with the EU communication to the public right.⁵⁸ This is because the ‘new public’ criterion was responsible for the exhaustion issue in *Svensson*, which in turn necessitated the radical response in *GS Media*, whereby the ‘knowledge’ criterion was introduced. The insertion of the ‘knowledge’ criterion can also be said to be the CJEU’s move to harmonize secondary liability at the EU level⁵⁹ through the backdoor.⁶⁰ When this idea is viewed alongside the CJEU’s inclusion of hyperlinks and torrent files as acts of ‘communication’, the argument that secondary liability has been harmonized at the EU level becomes more compelling. If hyperlinks and torrent files were not considered an act of ‘communication’, they would fall outside the scope of the communication to the public right and – consequently – outside the scope of harmonized EU copyright law. In other words, they would be left to the domestic laws concerning secondary liability.⁶¹

The main point for noting is that the CJEU’s development of the communication to the public right has been a deliberate attempt to expand the scope of the right to achieve the specific goals set out in the recitals of the InfoSoc Directive and, moreover, develop EU copyright law in the absence of express laws. However, a holistic look at the communication to the public right in its current form illustrates a piece-meal, reactive response to contemporary technologies that lacks clarity and coherence.⁶²

Ignoring the dissemination function of copyright law

In addition to the strictly legal considerations discussed above, the interpretation and application of the communication to the public right has also been affected by the justification and ideology underlining the EU copyright law framework. In the InfoSoc Directive, it is

57 These issues will be discussed further below.

58 It is argued that ‘new public’ cannot lay the groundwork for a sound right of communication to the public and that it can lead to unpredictable outcomes: see Foong (2020) 238; S Karapapa, ‘The Requirement for a “New Public” in EU Copyright Law’ (2017) 42(1) *European Law Review* 63 and PB Hugenholtz and S Van Velze, ‘Communication to a New Public? Three Reasons Why EU Copyright Law Can Do Without a “New Public”’ (2016) 47(7) *IIC* 797, 810–811.

59 AG Szpunar in his Opinion in *Ziggo* stated that failing to expand the scope of the communication to the public right to address torrent files would undermine the objective of harmonizing EU copyright law because, if left to individual Member States, the goals of harmonization would be compromised due to inconsistent approaches: Case C-610/15 *Stichting Brein v Ziggo BV and XS4ALL Internet BV* [2017] Opinion of AG Szpunar ECLI:EU:C:2017:99, at [3].

60 C Angelopoulos, *European Intermediary Liability in Copyright: A Tort-Based Analysis* (Alphen aan den Rijn: Kluwer Law International BV 2017) 65–66. Also see: B Clark and J Dickenson, ‘Theseus and the Labyrinth? An Overview of ‘Communication to the Public’ under EU Copyright Law: After Reha Training and GS Media. Where Are We now and Where Do We Go from Here?’ (2017) 39(5) *EIPR* 265, 277; P Savola, ‘EU Copyright Liability for Internet Linking’ (2017) 8 *Journal of Intellectual Property, Information Technology & Electronic Commerce Law (JIPITEC)* 139, 143; L Mideleva, ‘Rethinking Hyperlinking: Addressing Hyperlinks to Unauthorized Content in Copyright Law and Policy’ (2017) 39(8) *EIPR* 479, 487; C Lim Saw, ‘Linking on the Internet and Copyright Liability: A Clarion Call for Doctrinal Clarity and Legal Certainty’ (2018) 49(5) *IIC* 536, 562; Ginsburg (2017); and JB Nordemann, ‘Recent CJEU Case Law on Communication to the Public and its Application in Germany: A New EU Concept of Liability’ (2018) 13(9) *JIPLP* 744, 745.

61 The provision of hyperlinks and torrent files should be addressed by secondary liability, if at all under copyright law because they do not actually make a provision of the work, but merely facilitate access to the work that was already made available. At best, hyperlinks and torrent files expand the availability of a pre-existing work.

62 T Sydinou, ‘Decoding the Kodi Box: To Link or Not to Link?’ (2017) 39(12) *EIPR* 733, 736.

expressly stated that copyright law exists to ‘foster substantial investment in creativity and innovation’⁶³ and to ‘ensure the maintenance and development of creativity’.⁶⁴ As a result, a high level of protection is warranted to protect these authorial and investment interests otherwise creation would not occur to an optimal level. This justification is illustrative of the traditional incentive or reward theories that copyright exists to encourage creation. However, encouraging creation is not the only goal or objective of copyright law. There is also the dissemination function⁶⁵ that has been largely ignored under the InfoSoc Directive and by the CJEU. It can be argued that, for copyright law to strike a fair balance of the relevant ‘rights and interests’, the dissemination function must be accounted for. Otherwise, the goal under Recital 31 of the InfoSoc Directive will be jeopardized.

The dissemination function of copyright exists to encourage the wide distribution of works so that persons can interact with and learn from existing works.⁶⁶ This function of copyright can be inferred from the utilitarian approach to copyright that suggests copyright works are worth protecting because of their cultural and educational value.⁶⁷ Therefore, copyright seeks to encourage the creation and dissemination of works due to the consequent public good that arises by virtue of having access to these works.⁶⁸ Recital 22 of the InfoSoc Directive acknowledges this incentive-access paradigm, as Lunney described it.⁶⁹ However, the acknowledgement is limited as the recital states that ‘the dissemination of culture must not be achieved by sacrificing strict protection of rights or by tolerating illegal forms of distribution [...]’⁷⁰

The problem with Recital 22 is that the focus is primarily placed on rightholders to the detriment of other stakeholders, which marginalizes the dissemination function. Those creating and applying laws must understand the impact of copyright law on non-rightholders if the correct balance is to be struck.⁷¹ Unfortunately, the CJEU has acted rigidly in upholding Recital 22 to the extent that any modern act of unauthorized communication involving technology that is perceived as ‘disruptive technology’⁷² has been held to be *prima facie* infringing.⁷³ Furthermore, the CJEU has engaged its judicial activism approach to secure the interests of rightholders by any means as evidenced by the introduction of the ‘knowledge’ criterion which has resulted in intermediaries being held primarily liable for infringements of the communication to the public right. This compromises the dissemination function

63 Recital 4 of the InfoSoc Directive.

64 Recital 9 of the InfoSoc Directive.

65 Foong (2019) 7 and 37–42; L Ray Patterson and S Birch Jr, ‘A Unified Theory of Copyright’ (2009) 46 *Hous L Rev* 215, 392; and Wu (2004) 279. Wu described the dissemination function as the communication policy or function of copyright law.

66 C Foong, ‘The Making Available Right: Problems with “the Public”’ in J Gilchrist and B Fitzgerald (eds), *Copyright, Property and the Social Contract: The Reconceptualisation of Copyright* (Cham: Springer International Publishing 2018) 268–269; Foong (2019) 38; and Patterson and Birch Jr (2009) 392.

67 W Dibble, ‘Justifying Intellectual Property’ (1994) *UCL Juris Rev* 74, 81.

68 L Zemer, ‘On the Value of Copyright Theory’ (2006) *IPQ* 55, 58; E Hettinger, ‘Justifying Intellectual Property’ (1989) 18 *Philosophy & Public Affairs* 31, 48; and C Geiger, ‘“Constitutionalising” Intellectual Property Law? The Influence of Fundamental Rights on Intellectual Property in the European Union’ (2006) *IIC* 371, 378.

69 G Lunney Jr, ‘Reexamining Copyright’s Incentives-Access Paradigm’ (1996) 49 *Vand L Rev* 483.

70 See Recital 22 of the InfoSoc Directive.

71 Wu (2004) 366.

72 ‘Disruptive technology’ is defined as “a new technology that completely changes the way things are done” – Cambridge Dictionary, ‘disruptive technology’ <<https://dictionary.cambridge.org/dictionary/english/disruptive-technology>> (last accessed 19 August 2020). ‘Disruptive technologies’ affect business models and more generally the way the market functions.

73 See *GS Media* [2016], *Filmspeler* [2017], and *Ziggo* [2017].

of copyright law because contemporary and new technologies that distribute works are prejudiced.⁷⁴ The decisions of the CJEU have been weighted in favor of rightholders at the expense of users and intermediaries who engage with modern technologies that are perceived as disruptive.⁷⁵ Notably, this has significant implications for platforms that involve the sharing of user-generated content such as social media and video hosting platforms.

Implications of choosing the wrong criteria

The primary issues with the right of communication to the public have revolved around the controversial criteria that have been used ('new public', 'specific technical means', and 'knowledge') and the application of the right to contemporary forms of internet technology (hyperlinks, torrent files, media players). These issues have been well-articulated in the existing literature,⁷⁶ as such only the implications of these issues will be discussed in this chapter. Due to the expansive interpretation of the communication to the public right by the CJEU, we are now faced with a legal landscape that is unclear and unpredictable.⁷⁷ This is evidenced by the continuous number of referrals on the right. At the time of writing, there were four pending referrals concerning, peer-to-peer file sharing via torrents,⁷⁸ sharing files on a Usenet service,⁷⁹ and the liability of YouTube for facilitating the sharing of videos uploaded by users.⁸⁰ It can be said that these four referrals are all direct consequences of the CJEU's choices in *Svensson*, *GS Media*, *Filmspeler*, and *Ziggo*.

The post-*Svensson* case law has given rise to a number of contentious situations including the exhaustion of the communication to the public right due to the application of 'new public' to the internet (*Svensson*),⁸¹ the conflation of primary and secondary liability due to the 'knowledge' criterion (*GS Media*),⁸² and the overexpansion of 'communication to the public' to include mere facilitation (*Filmspeler*)⁸³ and intermediary responsibility for acts of

74 See J Ginsburg, 'Copyright and Control Over New Technologies of Dissemination' (2001) 101 Colum L Rev 1613. Ginsburg discussed the need to balance the incentive function so that new technologies which facilitate dissemination are not stifled.

75 This notion will be explored further below.

76 For discussion on key issues about the communication to the public right see: Frosio (2020) 11–30; Leistner (2017); Syndinou (2017); Karapapa (2017); E Rosati, 'GS Media and its Implications for the Construction of the Right of Communication to the Public within EU Copyright Architecture' (2017) 54(4) *Common Market Law Review* 1221; E Rosati, *Copyright and the Court of Justice of the European Union* (Oxford University Press 2019) 96–110; I Stamatoudi, "'Browsing", "Linking" and "Framing" in the Light of the EU Court of Justice's (CJEU) Case Law' in T Pistorius (ed), *Intellectual Property Perspectives on the Regulation of New Technologies* (Cheltenham: Edward Elgar Publishing 2018); and Koo (2019).

77 The decisions of the CJEU can be argued to be overlapping, inconsistent and sometimes contradictory. A clear doctrine remains absent – J Groom, I Silverman and B Clark, 'Still Lost in the Labyrinth? CJEU Rules in *Filmspeler* that Pre-loading a Set-top box with Links to a Pirate Site is a Communication to the Public' (2017) 39(9) *EIPR* 591, 593.

78 Case C-597/19 *MICM Mircom International Content Management & Consulting Ltd v Telenet BVBA* (referral).

79 Case C-442/19 *Stichting Brein v News-Service Europe BV* (referral).

80 Case C-682/18 *LF v Google LLC, YouTube Inc, YouTube LLC and Google Germany GmbH* (referral) and Case C-500/19 *Puls 4 TV GmbH & Co KG v YouTube LLC and Google Austria GmbH* (referral).

81 J Rosén, 'How Much Communication to the Public is 'Communication to the Public'?' in I Stamatoudi (ed), *New Developments in EU and International Copyright Law* (Alphen aan den Rijn: Kluwer Law International BV 2016) 343.

82 Angelopoulos (2017) 65–66, Clark and Dickenson (2017) 277, Savola (2017) 143, para 23, Mideliéva (2017) 487, Lim Saw (2018) 562, Ginsburg (2017) 3 and Nordemann (2018) 745.

83 *Filmspeler* [2017] para 41.

users (*Ziggo*).⁸⁴ As a result of these choices, the CJEU has created many more questions than those resolved in deciding the prior cases. Therefore, there are lingering concerns about how the choices made in the cases mentioned will impact on the future development of the right and its relevant stakeholders. Particularly, it is unclear: how far the new notion of primary liability for intermediaries will go; how new disruptive communication technologies will be treated due to the bias exhibited toward traditional forms of dissemination and rightholders; and what impact the development of the communication to the public right will have on creativity and the access to works and information.⁸⁵ Consequently, the CJEU has much more work to do in clarifying the law. It is likely that the right of communication to the public will need to be recalibrated if certainty and predictability is to be achieved.

Asking and answering the wrong questions

It continues to be the case that the wrong questions are being addressed in the CJEU. The blame here must be distributed because the problem is derived from a number of sources. It can be said that from the beginning the wrong questions are being asked in a normative copyright sense. Alternatively, it can also be said that the phrasing of questions referred by national courts and the subsequent interpretation of those questions by the CJEU has contributed to the problem. This idea was pursued by Giblin and Ginsburg who discussed the notion that the wrong questions are being asked in communication to the public cases and, as a consequence, the wrong answers are being established.⁸⁶ Giblin and Ginsburg argued that the CJEU's focus on 'who made the 'communication'' and 'the size of the public' are not conducive for the development of a coherent right of communication to the public. They also went on to argue that the above two questions are ancillary and leave no room for the consideration of whether a particular act should be subject to liability. Instead, the CJEU should focus on the nature of the act/use/technology.⁸⁷ Giblin and Ginsburg suggested that the correct questions include:

Does the use duplicate or displace existing forms of exploitation?

Does the use supplant markets or created new ones?⁸⁸

These two questions are reminiscent of the fair use criteria used for the exceptions and limitations to copyright under US copyright law.⁸⁹

Analyzing the communication to the public case law of the CJEU revealed that Giblin and Ginsburg's notion of 'wrong questions' is indeed a legitimate concern. In particular, the cases post-*Svensson* clearly demonstrate that the wrong questions were asked because the technologies involved were mostly assumed as coming within the scope of 'communication'. This is most notable in *Svensson*, where a blanket liability approach to hyperlinks was established.⁹⁰

⁸⁴ *Ziggo* [2017] paras 37–39.

⁸⁵ T Rendas, 'Copyright, Technology and the CJEU: An Empirical Study' (2018) 49(2) *IIC* 153, 158.

⁸⁶ R Giblin and J Ginsburg, 'Asking the Right Questions in Copyright Cases: Lessons from *Aereo* and its International Brethren' in T Pistorius (ed), *Intellectual Property Perspectives on the Regulation of New Technologies* (Cheltenham: Edward Elgar Publishing 2018).

⁸⁷ Giblin and Ginsburg in Pistorius (2018) 145–146 and 151.

⁸⁸ *Ibid.*, 151.

⁸⁹ See the four criteria set out in s.107 of the Copyright Act of the USA.

⁹⁰ The term 'clickable links' was used without any further explanation: *Svensson* [2014], at [18].

There was no discussion about the type of hyperlink⁹¹ involved nor the technology or its uses. Instead, the focus was on the responsible party and the type of audience.⁹² This sentiment can also be applied to *Filmspeler* and *Ziggo*, where the exercise of the CJEU was focused on establishing who was culpable without considering whether the acts involved should be subject to the communication to the public right or moreover, primary liability.⁹³ It is arguable that the general approach of the CJEU demonstrates a bias toward traditional technologies and right-holders because the communication to the public right has been stretched to encompass disruptive technologies like hyperlinks, media players, and torrent files with little or no justification.⁹⁴ This is not to say that these technologies and the acts of users who frequent them raise no copyright issues. Rather, it must be questioned whether the application of the communication to the public right is the correct means to address the problem.

Going forward, it must be asked whether the communication to the public right should be applied and more particularly, whether the act in question really amounts to a ‘communication’. Focus should be placed on regulating competing disseminations/disseminators rather than regulating the mode of dissemination.⁹⁵ That is, focus should be on actual acts involving the unauthorized provisions of works to recipients. To this end, there is a need for holistic change in the CJEU’s process of deciding communication to the public cases. All the issues discussed in this chapter need to be taken into account. Otherwise, the law will remain unclear, incoherent, and unpredictable especially in relation to new technologies.

Predicting the pending cases

This chapter has discussed the key issues contributing to the problems with the existing EU communication to the public right. With that knowledge, the four pending referrals involving the application of the communication to the public right to modern internet technologies (Cases C-682/18 and C-683/19;⁹⁶ C-442/19;⁹⁷ C-500/19;⁹⁸ and C-597/19⁹⁹) will be analyzed for the purpose of highlighting what the CJEU is likely to hold.¹⁰⁰ The predictions will then be qualified to indicate any continuing problems.

91 See Frosio (2020) for discussion on how different types of hyperlinks were addressed and/or ignored by the CJEU in various cases.

92 Foong argued that technology neutral fault-based approaches should not be substitutes for principled decision-making: Foong (2020) 230.

93 Assumptions were made that the multimedia player loaded with add-ons and torrent files amounted to acts of ‘communication’ by virtue of analogy to the decision in *Svensson* on clickable links: *Filmspeler* [2017], at [37]–[38] and *Ziggo* [2017], at [32]–[34].

94 Simply because a technology is disruptive does not mean it infringes copyright law. The value of the technology must be incorporated into the determination of infringement: Foong (2020) 238.

95 Wu (2004) 366.

96 *Peterson v YouTube* [2020].

97 Case C-442/19 *Stichting Brein v News-Service Europe BV* (in progress).

98 Case C-500/19 *Puls 4 TV GmbH & Co KG v YouTube LLC and Google Austria GmbH* (in progress).

99 Case C-597/19 *MICM Mircom International Content Management & Consulting Ltd v Telenet BVBA* (in progress).

100 Case C-637/19 *BY v CX* (referral) is excluded because it focuses on the ‘public’ element of the communication to the public right and exceeds the scope of this chapter.

Joined Cases C-682/18 and C-683/18 Peterson v YouTube and Elsevier v Cyando and Case C-500/19 Puls 4 v YouTube

Issue – Does the operator of an internet video or file-hosting and sharing platform which contains publicly accessible, unauthorized copyright protected works uploaded by users, carry out an act of communication to the public? And if so, does that lead to a loss of the liability privilege under the E-commerce Directive?

The first question for the CJEU is whether the operator of the platform is responsible for acts of communication to the public by providing access to files uploaded by its users. The second question is whether the operator of the platform can make avail of the liability privilege available to hosting services. Taken together, the issues revolve around whether the operator of the platform is a content provider or mere host.

Predicted Answer – These cases will likely be decided in similar fashion to *Ziggo*, if the existing CJEU case law is to be followed.¹⁰¹ This is because YouTube, like The Pirate Bay, provides a platform allowing users to upload works which are then offered for open access using the infrastructure built into the platform. In the case of YouTube, the video platform allows users to upload works in accordance with a licensing agreement that grants YouTube a worldwide, non-exclusive, and royalty-free license to disseminate the video as long as it remains posted.¹⁰² Subsequent to an upload, the files are stored on YouTube's servers and made accessible via a built-in search function. Some videos are subjected to advertisements, of which the monetary proceeds are shared with the rightholder. Furthermore, YouTube offers a number of tools to connect users with uploaded content, such as suggested videos, online tips for searching, an electronic directory inclusive of video categorization and content rankings.

This said, Uploaded is a file-hosting and sharing platform that allows users to upload works without any content analysis, for storage. Each file uploaded automatically generates a download link that can be shared allowing other persons to download the stored file. Unlike YouTube, there are access limits for non-subscription users in the form of download data limits and download speed limits. Furthermore, Uploaded does not provide a directory or a search function.¹⁰³ Similarly, with regard to YouTube, it is important to note that uploads occur automatically without YouTube being aware of the content to be uploaded. However, this is counter-balanced by the inclusion of copyright notices, blocking tools for rightholders, and efficient compliance with notice and takedown instructions. Additionally, YouTube has a search function and a 'suggestions' function that are key aspects of the appeal in using YouTube.

With that in mind, the CJEU is likely to conclude that YouTube does commit an act of 'communication' because it provides access to works and, moreover, due to the license agreement expressly conferring a right on YouTube to make the works available to the public. Furthermore, there will be 'knowledge' because the platform is 'for profit' and, also, the size of the operation and the large amount of unauthorized content cannot be ignored.¹⁰⁴ Likewise, the CJEU is likely to hold that Uploaded is responsible for an act of communication to

101 ALAI argued that *Ziggo* is the most relevant case to be incorporated in deciding the *LF v YouTube* – ALAI, *Opinion in respect of some of the questions from the Federal Court of Justice of Germany for preliminary ruling by the CJEU, Case C-682/18 (YouTube)* (2019) 5.

102 ALAI argued that the license leads to the conclusion that the operator admitted to an act of 'communication' – *ibid.*, 3.

103 *Peterson v Google* [2020] Opinion of AG Saugmandsgaard ØE, at [30]–[31].

104 ALAI (2019) 4.

the public because it provides access to stored works by virtue of the automatically generated hyperlinks and moreover, there will be ‘knowledge’ because the platform is ‘for profit’.

However, if the *Ziggo* decision is to be applied/replicated in these cases, a primary point of concern should be on the fact that the platforms under consideration are different to The Pirate Bay. Whereas, The Pirate Bay solely exists for the facilitation of illegal file sharing, YouTube and Uploaded have legitimate purposes despite the fact that unauthorized content is also shared. Therefore, a finding of liability will have far reaching implications for the provision of ‘legal’ platforms that allow user-generated content. This may result in substantial changes to user upload processes or alternatively, could spell the end of ‘free’ upload and access user generated platforms. The impact of such a decision should be contemplated by the CJEU.¹⁰⁵

Case C-442/19 Stichting Brein v News Service

Issue – Does the operator of a Usenet platform commit an act of communication to the public where its platform is used by users to locate and download unauthorized copyright works via overviews of newsgroups and/or unique message IDs?

The primary question for the court is whether the Usenet platform is directly liable for acts of communication to the public involving material uploaded by its users. The secondary question is whether the establishment of communication to the public will preclude the application of the hosting exception under Article 14 of the E-commerce Directive.

Predicted Answer – It is likely that the CJEU will decide this case by analogy to *Ziggo*. In *Ziggo*, it was assumed that there was an act of ‘communication’ and then the finding of infringement hinged on the establishment of ‘knowledge’, which was easy to establish because of the wonton and open nature of infringement and moreover, the existence of advertisements meant it was ‘for profit’. However, in the present case, it is unclear what percentage of information shared on the Usenet platform is infringing. Moreover, it is also unknown from the referral whether Usenet is run ‘for profit’. However, what is known is that the process of downloading files from Usenet is similar to that of torrent files whereby a single file is split into multiple binaries which must be all downloaded and then reassembled using third-party software to obtain the desired file. What Usenet provides are classifications of discussion topics and unique message IDs which can be used by third-party software to search for specific content.

In that sense, Usenet is different from The Pirate Bay which indexes the torrent files and provides a search function. Similarly, it is also arguable that Usenet does not make it ‘easier’ for users to access works as was the case in *Filmspeler*.¹⁰⁶ Notwithstanding this, it is conceivable that the CJEU will still make the finding that the Usenet platform commits an act of ‘communication’ because it provides access to works.¹⁰⁷ However, it is unknown how the decision on ‘knowledge’ will be delivered. It is this author’s guess that in the absence of actual knowledge or a clear profit motive (advertising, subscription fees, etc.), there will be a finding of no ‘knowledge’ and consequently

105 The AG Opinion in *Peterson v YouTube* [2020] departed from the expected reasoning in relation to ‘communication to the public’ by utilizing the transmission approach and subsequently making a finding of no infringement. It is an open question whether the CJEU will agree with AG Saugmandsgaard ØE’s Opinion. However, the AG Opinion was bold in going against the established precedent of the CJEU. See *Peterson v YouTube* [2020] Opinion of AG Saugmandsgaard ØE, at [56] and [256].

106 *Filmspeler* [2017], at [41].

107 The broad interpretive approach seen in *Svensson*, *GS Media*, *Filmspeler* and *Ziggo* strongly points in the direction that an act of ‘communication’ will be found to subsist.

no ‘communication to the public’. This case is eagerly awaited because the CJEU will be forced to further define the ‘knowledge’ criterion along with its ‘for profit’ element.

Any development arising from this case will be crucial to the interpretation and application of the communication to the public right given that the finding of liability now seemingly hinges on the ‘knowledge’ criterion.

Case C-597/19 MICM v Telenet

Issue – Does the act of seeding for the purpose of facilitating torrent file downloads constitute an act of communication to the public?

The main question for the court to answer in this case is whether sharing a fragment of a work (seeding) that will be subsequently reassembled into the whole work is sufficient to constitute an act of communication to the public. In other words, the court is to consider whether there is a *de minimis* threshold for what is made accessible by the intervention of the user.

Predicted Answer – Following *Ziggo*, it has already been established that using torrent files invokes the communication to the public right. However, that discussion was focused on the perspective of the user creating the torrent file and websites like The Pirate Bay indexing and facilitating their dissemination. The case at hand focuses on the use of torrent files by users who become ‘seeders’ by virtue of the nature of the peer-to-peer network exchange. The operation of torrent files requires users to share fragments of the overall file to other users (seeding). Instead of downloading one file from one source, torrent files and peer-to-peer software operate by downloading a multitude of small parts of the file from multiple sources. Therefore, the question is whether these fragments are sufficient to be considered a substantial part of a copyright work.

There is no doubt, following *Ziggo*, that the act of making available a work via a torrent file amounts to an act of communication to the public.¹⁰⁸ As such, it is unnecessary to go through the individual elements of the test for communication to the public. What must be focused on is whether the fragment shared is *de minimis*.¹⁰⁹ Following the CJEU’s logic in interpreting ‘public’ to include successive customers as developed in *SGAE v Rafael Hoteles*,¹¹⁰ it is arguable that a similar approach will be applied in assessing whether the fragment is an original, and thus protectable, part of a work. It is acknowledged that the individual fragments are useless on their own. However, if the CJEU adopts a broad outlook of the situation as it has tended to do, it is plausible that the court will conclude that the act of seeding amounts to ‘communication to the public’ because the overall process provides access to a work.

This decision will have implications for network technologies that involve decentralized downloads. While private networks may remain unaffected, public application of such technologies may be severely curtailed. Consequently, the CJEU should consider the value of the technology in making its decision.

108 See J Koo, ‘Away We Ziggo: The Latest Chapter in the EU Communication to the Public Story’ (2018) 13(7) *JIPLP* 542.

109 AG Szpunar in *Pelham* expressed doubt about the existence or application of a *de minimis* threshold for the purpose of determining infringement under EU copyright law: *Pelham GmbH, Moses Pelham, Martin Haas v Ralf Hütter, Florian Schneider-Esleben* [2018] Opinion of AG Szpunar ECLI:EU:C:2018:1002, at [28]–[33].

110 *SGAE v Rafael Hoteles* [2006], at [38]–[39].

Conclusion

This chapter exposed the inner workings of the EU right of communication to the public and isolated the key elements that have contributed to the controversy surrounding the decision-making of the CJEU. This author harbors hope that the CJEU will re-assess its decision-making process and make alterations to produce a more balanced approach leading to more desirable results.

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